

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

WILLIE ROBSON,

Plaintiff,

v.

THE CITY OF NEW YORK, a municipal entity;
New York City Police Officers MAX CHEUNG
(Shield No. 19707) and Sgt. JOHN DOE (whose
identity is unknown but who is known to be
personnel of the NYPD), all of whom are sued in
their individual capacities,

Defendants.

INDEX NO.

SUMMONS

Plaintiff designates New York County as the
County of Venue based on the location where
the claim arose.

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to serve upon plaintiff's attorney,
at his address stated below, an answer to the attached complaint.

If this summons was personally served upon you in the State of New York, the answer
must be served within 20 days after such service of the summons, excluding the date of
service.

If the summons was not personally delivered to you within the State of New York, the
answer must be served within 30 days after service of the summons is complete as provided
by law.

If you do not serve an answer to the attached complaint within the applicable time
limitation, a judgment may be entered against you, by plaintiff, for the relief demanded in
the complaint, without further notice to you.

The action will be heard in the Supreme Court of the State of New York, in and for
the County of New York. This action is brought in New York County because it is the place
in which the claim arose.

Dated: January 31, 2023
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN LLP
99 Park Avenue, PH/26th Floor
New York, New York 10016
(212) 490-0400

By: /s/Marc A. Cannan
Marc A. Cannan

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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WILLIE ROBSON,

Plaintiff,

**VERIFIED COMPLAINT AND
DEMAND FOR A JURY TRIAL**

-v-

Index No.

THE CITY OF NEW YORK, a municipal entity;
New York City Police Officers MAX CHEUNG
(Shield No. 19707) and Sgt. JOHN DOE (whose
identity is unknown but who is known to be
personnel of the NYPD), all of whom are sued
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Defendants.

-----X

Plaintiff WILLE ROBSON, through his attorneys Beldock Levine & Hoffman LLP, as
and for his complaint against the defendants named above alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action brought under 42 U.S.C. § 1983 for violations of rights guaranteed to Plaintiff WILLIE ROBSON (“PLAINTIFF” or “Mr. ROBSON”) by the Fourth and Fourteenth Amendments to the United States Constitution, and violations of the common law and the Constitution of the State of New York by defendants THE CITY OF NEW YORK (“CITY”), New York City Police Department (“NYPD”) Police Officers MAX CHEUNG (Shield No. 19707) (“CHEUNG”) and Sgt. JOHN DOE (“Sgt. DOE”).

2. On the night of May 18, 2022, in New York, New York, defendant Police Officers CHEUNG and Sgt. DOE unlawfully arrested Mr. ROBSON to punish him for failing to display the degree of deference or subservience they demanded as police officers. Without reasonable

suspicion or probable cause to believe Mr. ROBSON had engaged in illegal activity, CHEUNG and Sgt. DOE had demanded to see Mr. ROBSON's identification. When Mr. ROBSON lawfully declined the police officers' demand and attempted to continue on his way, CHEUNG and Sgt. DOE unlawfully grabbed Mr. ROBSON, violently forced him against a wall, and gratuitously twisted his arms behind his back causing Mr. ROBSON great physical pain and emotional distress. To further punish Mr. ROBSON, CHEUNG and Sgt. DOE falsely accused Mr. ROBSON of possessing forged MetroCards and caused him to be put through the criminal justice system. All of the false charges CHEUNG and Sgt. DOE alleged against Mr. ROBSON were subsequently dismissed.

3. Mr. ROBSON seeks (i) compensatory damages for loss of liberty, physical and psychological pain, and other injuries caused by the illegal actions of the Defendants; (ii) punitive damages to deter such intentional or reckless deviations from well-settled constitutional law; (iii) costs and attorneys' fees; (iv) and such other and further relief as this Court deems equitable and just.

JURISDICTION

4. This is a civil rights action brought pursuant to 42 U.S.C. § 1983 and 1988 for violations of PLAINTIFF's rights secured by the Fourth and Fourteenth Amendments to the United States Constitution; and for violations of PLAINTIFF's rights under Article I, §§ 1, 6, and 12 of the New York State Constitution and the statutory and common law of New York State.

5. The amount of damages sought exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction.

6. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

VENUE

7. Pursuant to CPLR 503 and 504, venue is proper in New York County because it is the county in which PLAINTIFF resides and the police misconduct and civil rights violations giving rise to this action occurred within New York County.

JURY DEMAND

8. PLAINTIFF demands a trial by jury in this action on each of his claims for which jury trial is legally available.

THE PARTIES

9. At all relevant times, Mr. ROBSON resided in New York County, in the City and State of New York.

10. Defendant CITY OF NEW YORK (“CITY”) is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The CITY assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department (“NYPD”).

11. Defendant Police Officers CHEUNG and Sgt. DOE are NYPD Officers who, *inter alia*, unlawfully seized, assaulted, battered, detained, and arrested PLAINTIFF.

12. At all times relevant herein, defendant Police Officers CHEUNG and Sgt. DOE were NYPD Police Officers.

13. Upon information and belief, defendant Police Officers CHEUNG and Sgt. DOE are still NYPD Police Officers.

14. At all times relevant herein, defendant Police Officers CHEUNG and Sgt. DOE acted under color of state law in the course and scope of their duties and/or functions as agents, employees, and/or officers of the CITY and/or the NYPD, and incidental to the lawful pursuit of their duties as agents, employees, and/or officers of the CITY and/or the NYPD.

15. At all times relevant herein, defendant Police Officers CHEUNG and Sgt. DOE violated clearly established rights and standards under the Fourth and Fourteenth Amendments to the United States Constitution and under equivalent New York State constitutional provisions, of which reasonable police officers in their circumstances would have known.

16. The true name and shield number of defendant Sgt. DOE is not currently known to the PLAINTIFF. However, Sgt. DOE is an employee or agent of the NYPD. Accordingly, they are entitled to representation in the action by the New York City Law Department (“Law Department”) upon their request, pursuant to New York State General Municipal Law § 50-k. The Law Department, then, is hereby put on notice (a) that PLAINTIFF intends to name said officer as defendants in an amended pleading once the true names and shield numbers of said defendant become known to PLAINTIFF and (b) that the Law Department should immediately begin preparing their defense in the action.

ADMINISTRATIVE PROCEEDINGS

17. On July 13, 2022, PLAINTIFF timely served a Notice of Claim pursuant to New York State General Municipal Law § 50-e(1), within ninety days of the May 24, 2022 dismissal of PLAINTIFF’s criminal charges.

18. More than thirty (30) days have elapsed since PLAINTIFF served his Notice of Claim and the CITY has not offered adjustment or payment thereof.

19. At the request of the City of New York, on October 27, 2022, PLAINTIFF submitted to a hearing pursuant to New York General Municipal Law § 50-h.

20. This action is filed within one year and ninety days of the events giving rise to PLAINTIFF's state law claims.

STATEMENT OF FACTS

21. On May 18, 2022, Mr. ROBSON was 50 years old and working as a kitchen manager at a cloud kitchen pop-up restaurant.

22. At approximately 9:15 pm, Mr. ROBSON was attempting to return to his home and entered the subway station at 8th Avenue and West 14 Street in New York, New York.

23. While waiting for his train, Mr. ROBSON sat down on the stairs leading from the subway platform to a mezzanine level.

24. Defendant Police Officers CHEUNG and Sgt. DOE approached Mr. ROBSON and told him to move because he was obstructing the stairwell.

25. Mr. ROBSON responded by standing up and turning to walk up the stairs.

26. As Mr. ROBSON was walking up the stairs one of the officers asked him for his identification.

27. Mr. ROBSON responded that he did not have to give the officers his identification and attempted to continue walking up the stairs.

28. Without reasonable suspicion or probable cause to believe that Mr. ROBSON had committed a crime, Officer CHEUNG grabbed Mr. ROBSON's arm in an attempt to detain him.

29. Mr. ROBSON shook off Officer CHEUNG's hand and told the officer to get his hands off of him and that he had no right to touch him.

30. Mr. ROBSON continued walking up the stairs, followed by defendant Police Officers CHEUNG and Sgt. DOE.

31. When Mr. ROBSON reached the top of the stairs, defendant Police Officers CHEUNG and Sgt. DOE violently grabbed Mr. ROBSON, forced him up against a wall, and gratuitously twisted his arms behind his back.

32. Defendant Police Officers CHEUNG and Sgt. DOE did not advise Mr. ROBSON that he was under arrest.

33. Mr. ROBSON was terrified by the police officers' actions and called out for help.

34. Mr. ROBSON told the officers that they were hurting him and asked them to remove their hands from him.

35. Defendant Police Officers CHEUNG and Sgt. DOE did not respond to Mr. ROBSON's requests.

36. Without seeking Mr. ROBSON's consent, Sgt. DOE began searching Mr. ROBSON's person while Officer CHEUNG continued to painfully restrain Mr. ROBSON.

37. Defendant Sgt. DOE took Mr. ROBSON's wallet out of Mr. ROBSON's pants pocket and examined its contents without Mr. ROBSON's consent.

38. Defendant Sgt. DOE took Mr. ROBSON's identification card out of his wallet and, upon information and belief, had a background check run on Mr. ROBSON which revealed that Mr. ROBSON did not have any outstanding warrants.

39. Sgt. DOE subsequently removed two MTA MetroCards from Mr. ROBSON's wallet that Mr. ROBSON had purchased a year or two previously.

40. Defendant Sgt. DOE falsely stated that Mr. ROBSON had forged fare cards.

41. Mr. ROBSON did not possess forged fare cards.

42. Defendant Sgt. DOE eventually put the fare cards back into Mr. ROBSON's wallet and returned Mr. ROBSON's wallet to Mr. ROBSON's pants pocket.

43. Defendant Police Officers CHEUNG and Sgt. DOE then arrested Mr. ROBSON and took him to the 5th precinct where he was further searched, processed, and placed in a holding cell.

44. Mr. ROBSON was told that he was being charged with possessing a forged instrument but did not understand what that meant.

45. Mr. ROBSON was eventually transferred to New York County Central Booking where he was further processed and confined to holding cells.

46. Mr. ROBSON eventually met with an attorney at central booking.

47. The attorney advised Mr. ROBSON that he was being charged for allegedly having forged MetroCards.

48. Mr. ROBSON was eventually brought before a judge who advised him that he was being charged with Criminal Possession of a Forged Instrument in the Third Degree, P.L. § 170.20.

49. Mr. ROBSON stated he was innocent of that charge.

50. At approximately 5:00 pm on May 19, 2022, after having spent approximately 20 hours in custody, Mr. ROBSON was given a date to return to court and released on his own recognizance.

51. On May 24, 2022, Mr. ROBSON learned that the criminal case against him had terminated in his favor with all charges against him being dismissed.

52. At no time during the events described above was Mr. ROBSON a threat to the safety of himself or others, or disorderly. He had not committed any crime.

53. The individual defendant police officers had no warrant for Mr. ROBSON's arrest and no legal justification to arrest him, nor were they ever in danger as a result of Mr. ROBSON's actions.

54. At all times relevant herein, the individual defendant police officers were engaged in a joint venture. The individual officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during the said events.

55. Because of this incident, Mr. ROBSON has experienced physical pain and suffering, mental anguish, emotional injuries, loss of liberty, humiliation, indignity, and damages to his reputation.

Respondeat Superior

56. The individual police officer defendants were employees of the CITY at the time of the incidents alleged herein.

57. The individual police officer defendants were acting at all relevant times within the scope of their employment with the CITY.

58. The CITY is therefore vicariously liable for the tortious acts of the individual police officer defendants.

FIRST CAUSE OF ACTION
(Constitutional Violations -- 42 U.S.C. § 1983)
Against All Individual Defendants

59. PLAINTIFF realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

60. In committing the acts and omissions complained of herein, the individual police officer defendants acted under color of state law to deprive PLAINTIFF of certain constitutionally protected rights under the Fourth and Fourteenth Amendments to the United States Constitution, including, but not limited to:

- a. freedom from unreasonable search and seizure of his person and property;
- b. freedom from arrest without probable cause;
- c. freedom from use of excessive force;
- d. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion or legal justification, of which wrongful detention PLAINTIFF was aware and did not consent; and

61. In committing the acts and omissions complained of herein, the individual police officer defendants breached their affirmative duty to intervene to protect the constitutional rights of citizens from infringement by other law enforcement officers in their presence.

62. As a direct and proximate result of defendant Police Officers CHEUNG's and Sgt. DOE's deprivation of PLAINTIFF's constitutional rights, PLAINTIFF suffered the injuries and damages set forth above.

63. The unlawful conduct of the individual police officer defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

SECOND CAUSE OF ACTION
(New York State Constitutional Violations)
Against All Individual Defendants

64. PLAINTIFF realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

65. The acts and conduct of the individual police officer defendants breached the protections guaranteed to PLAINTIFF by the New York State Constitution including, but not limited to, Article I, §§ 1, 6, and 12, and including, without limitation, the following deprivations of rights, privileges, and immunities:

- a. PLAINTIFF was deprived of rights and privileges secured to him as a citizen of the State of New York, in violation of New York State Constitution Article I, § 1;
- b. PLAINTIFF was deprived of his rights to due process, in violation of New York State Constitution Article I, § 6; and
- c. PLAINTIFF was deprived of his right to be free from unreasonable searches and seizures, in violation of New York State Constitution Article I, § 12.

66. As a result of the foregoing, PLAINTIFF was deprived of his liberty, suffered bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

THIRD CAUSE OF ACTION
(False Arrest and False Imprisonment)
Against All Individual Defendants

67. PLAINTIFF realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

68. The individual police officer defendants committed the foregoing acts intentionally, willfully, and with malicious disregard for PLAINTIFF's rights and are therefore liable for punitive damages.

69. By the actions described above, the individual police officer defendants caused PLAINTIFF to be falsely arrested or falsely arrested, without reasonable or probable cause, illegally and without a warrant, and without any right or authority to do so.

70. The individual police officer defendants caused PLAINTIFF to be falsely detained and imprisoned without good faith, reasonable suspicion, or legal justification, of which detention PLAINTIFF was aware and to which he did not consent.

71. The acts of the individual police officer defendants were the direct and proximate cause of injury and damage to PLAINTIFF and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

72. As a result of the foregoing, PLAINTIFF was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

FOURTH CAUSE OF ACTION
(Assault and Battery)
Against All Individual Defendants

73. PLAINTIFF realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

74. Defendant Police Officers CHEUNG and Sgt. DOE, without just cause, wilfully and maliciously used physical force against PLAINTIFF causing him injury.

75. The individual police officer defendants committed the foregoing acts intentionally, wilfully, and with malicious disregard for PLAINTIFF's rights, and are therefore liable for punitive damages.

76. The acts of the individual police officer defendants were the direct and proximate cause of injury and damage to PLAINTIFF and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

77. As a result of the foregoing, PLAINTIFF was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

FIFTH CAUSE OF ACTION
(Negligence)
Against All Individual Defendants

78. PLAINTIFF realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

79. Defendant Police Officers CHEUNG and Sgt. DOE owed PLAINTIFF a duty of care, including the duty to exercise due care in the course of their duties as NYPD officers and the duty to protect citizens from the intentional misconduct of other NYPD officers.

80. The individual police officer defendants, through the foregoing acts, negligently failed to use due care in the performance of their duties in that they failed to perform their duties with the degree of care that a reasonably prudent and careful officer would have used under similar circumstances.

81. The individual police officer defendants negligently caused injuries, emotional distress, and damage to PLAINTIFF. The acts of the individual police officer defendants were the direct and proximate cause of injury and damage to PLAINTIFF and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

82. All these acts were performed without any negligence on the part of PLAINTIFF and were the proximate cause of the injuries to PLAINTIFF.

SIXTH CAUSE OF ACTION
(Intentional, Reckless, and Negligent Infliction of Emotional Distress)
Against All Individual Defendants

83. PLAINTIFF realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

84. As police officers acting in the performance of their duties, defendant Police Officers CHEUNG and Sgt. DOE defendants Sgt. DOE owed PLAINTIFF a duty of care.

85. In breach of that duty, the individual police officer defendants endangered PLAINTIFF's safety and caused PLAINTIFF to fear for his safety.

86. By the actions described above, the individual police officer defendants engaged in extreme and outrageous conduct, which intentionally, recklessly, and/or negligently caused severe emotional distress to PLAINTIFF. The acts of the individual police officer defendants were the direct and proximate cause of injury and damage to PLAINTIFF and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

87. As a result of the foregoing, PLAINTIFF suffered emotional distress, was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, great humiliation, costs and expenses, and was otherwise damaged and injured.

SEVENTH CAUSE OF ACTION
(Violations of N.Y.C. Administrative Code §8-801, et. seq.)
Against All Individual Defendants

88. PLAINTIFF incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

89. By the actions described above, defendant Police Officers CHEUNG and Sgt. DOE violated PLAINTIFF's right to be secure in his person, papers and effects against unreasonable searches and seizures, and to be secure against the use of excessive force, in violation of N.Y.C.

Administrative Code § 8-802, and PLAINTIFF seeks redress under N.Y.C. Admin Code § 8-801, *et seq.*

90. As a result of the foregoing, PLAINTIFF was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, humiliation, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

EIGHTH CAUSE OF ACTION
(Negligent Hiring, Training, and Supervision Under State Law)
Against Defendant City of New York

91. PLAINTIFF realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

92. The CITY is liable to PLAINTIFF because of its intentional, deliberately indifferent, careless, reckless, and/or negligent failure to adequately hire, train, supervise, and discipline its agents, servants, and/or employees employed and/or the NYPD with regard to their aforementioned duties.

93. The acts and conduct of the CITY in negligently hiring, screening, and retaining its police officers were the direct and proximate cause of injury and damage to PLAINTIFF and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

94. As a result of the foregoing, PLAINTIFF was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

DEMAND FOR RELIEF

WHEREFORE, PLAINTIFF demands the following relief against the defendants, jointly and severally:

- (a) compensatory damages in an amount just and reasonable and in conformity with the evidence at trial;
- (b) punitive damages against all individual defendants to the extent allowable by law;
- (c) attorneys' fees;
- (d) the costs and disbursements of this action;
- (e) interest; and
- (f) such other and further relief as this Court deems just and proper.

Dated: January 31, 2023
New York, New York

BELDOCK LEVINE & HOFFMAN LLP

By: /s/Marc A. Cannan
Marc A. Cannan
99 Park Avenue, Suite 2600
New York, New York 10016
(212) 490-0400
mcannan&blhny.com

Attorneys for Plaintiff

VERIFICATION

STATE OF NEW YORK)

: ss.:

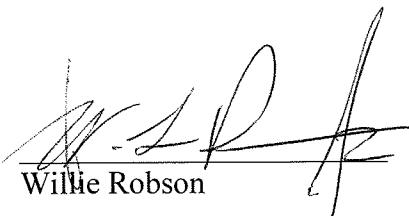
COUNTY OF NEW YORK)

Willie Robson, being duly sworn, deposes and says: I am the plaintiff in the within action;

I have read the foregoing Verified Complaint and know the contents thereof as they relate to me;

the same is true to my own knowledge, except as to the matters therein stated to be alleged on

information and belief, and as to those matters, I believe it to be true.


Willie Robson

Sworn to before me this
31st day of January, 2023


Notary Public

MARC A. CANNAN
NOTARY PUBLIC, State of New York
No. 02CA6265836
Qualified in Queens County 24th
Commission Expires 07/16/2016